



Federal Records Management: Managing Electronic Records, Including Electronic Messages

A Rule by the National Archives and Records Administration on 12/12/2022

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DOCUMENT HEADINGS

National Archives and Records Administration
36 CFR Parts 1220 and 1222
[FDMS No. NARA-22-0020; NARA-2022-067]
RIN 3095-AC08

AGENCY:

National Archives and Records Administration (NARA).

ACTION:

Final rule.

SUMMARY:

We are amending our regulations on creating and maintaining Federal records to explicitly include record-keeping requirements for electronic records. On January 1, 2021, the Federal Records Act was amended. It now requires the Archivist of the United States to promulgate regulations governing Federal agency preservation of electronic messages that are determined to be records. We are amending our regulations to define electronic messages and to expressly state records management requirements for electronic records, including electronic messages.

DATES:

This rule is effective on January 11, 2023.

ADDRESSES:

Regulatory and External Policy Program (MP); Suite 4100; National Archives and Records
 printed page 75931) Administration; 8601 Adelphi Road; College Park, MD 20740-6001.

FOR FURTHER INFORMATION CONTACT:

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SUPPLEMENTARY INFORMATION:

Background

On January 1, 2021, [Public Law 116-283](#) amended the Federal Records Act at [44 U.S.C. 2912](#) to require the Archivist of the United States to promulgate regulations governing Federal agency preservation of electronic messages that are records. The law states that the regulations must require agencies to electronically capture, manage, and preserve electronic message records, and must require that they can readily access such records through electronic searches. Additionally, the regulations should include timelines for Federal agencies to implement the resulting regulatory requirements as expeditiously as practicable.

We are amending [36 CFR part 1220](#), Federal Records; General, to define electronic messages and incorporate them into all existing requirements governing Federal records. We are also modifying [36 CFR part 1222](#), Creation and Maintenance of Federal Records, to specifically restate that the capture, management, and preservation of electronic records, including electronic messages, is an essential part of a Federal records management program.

These changes incorporate electronic messages into existing regulations on electronic records management. The current regulations in [36 CFR part 1236](#), Electronic Records Management, already state that records management controls are needed to ensure that Federal records in electronic information systems can provide adequate and proper documentation of agency business for as long as the information is needed. Part 1236 also requires agencies to ensure all records in electronic information systems are retrievable and usable for as long as they need the records to conduct agency business. In addition, [36 CFR 1222.22](#) currently specifies requirements for adequate documentation of agency business. These existing regulations apply to all electronic records, including electronic messages.

We are not providing agencies with a timeline for implementing these requirements. The Archivist of the United States has previously promulgated regulations that cover the requirements set forth in [Public Law 116-283](#), and agencies have been required to implement them for some time already. These requirements are effective on the effective date of this final rule.

Regulatory Analysis

Executive Order 12866, Regulatory Planning and Review, and Executive Order 13563, Improving Regulation and Regulation Review

The Office of Management and Budget (OMB) has reviewed this rulemaking and determined it is not “significant” under section 3(f) of [Executive Order 12866](#). It is not significant because it applies only to Federal agencies, updates the regulations due to a statutory requirement, the new requirements are being added to clarify ones that agencies have already been required to follow, and is not establishing a new program. The requirements are necessary to comply with statute and to ensure agencies are appropriately preserving records.

Regulatory Flexibility Act ([5 U.S.C. 601](#), et seq.)

This review requires an agency to prepare an initial regulatory flexibility analysis and publish it when the agency publishes the proposed rule. This requirement does not apply if the agency certifies that the rulemaking will not, if promulgated, have a significant economic impact on a substantial number of

4. In § 1222.26:

- 📄 **a.** Revise the section heading; (📄 printed page 75932)
- b.** Redesignate the introductory text as paragraph (a) introductory text;
- c.** Redesignate paragraphs (a) through (e) as paragraphs (a)(1) through (5); and
- d.** Add a new paragraph (b).

The revision and addition read as follows:

§ 1222.26

What are the general recordkeeping requirements for agencies?



(b) Agencies must capture, manage, and preserve electronic records with appropriate metadata and must be able to access and retrieve electronic records, including electronic messages, through electronic searches.

Debra Steidel Wall,

Acting Archivist of the United States.

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